

23VECV05171 23VECV05171

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 23VECV05171 Hearing Date: August 20, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Narine

Tsatryan,

Plaintiff,

v.

FCA

US LLC,

Defendant.

Case Number Department

23VECV05281 107

COURT'S [TENTATIVE]

ORDER RE:

Motion

for Mandatory Statutory Penalties

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

Plaintiff

Narine Tsaturyan ("Plaintiff") purchased a 2022 Jeep Grand Cherokee (the "Vehicle"). (Complaint ¶¶ 5, 7.) The Vehicle was defective. (Complaint ¶ 10.)

On

November 20, 2023, Plaintiff filed a complaint against Defendants FCA US LLC and Does 1 through 50, alleging causes of action for: (1) failure to affirmatively repurchase under the Act; and (2) failure to sell vehicle that would not pass without objection and was not properly packaged.

On

March 16, 2026, Plaintiff filed a notice of settlement of entire case.

On

June 3, 2026, Plaintiff filed a motion for mandatory statutory penalties under Code of Civil Procedure section 871.27, subdivision (G)(2) upon FCA US LLC (the "Motion"). On August 7, 2026, Defendant FCA US LLC ("Defendant") filed an opposition. As of August 17, 2026, no reply has been filed.

II.

LEGAL

STANDARD

Code

of Civil Procedure section 871.27 applies to civil actions seeking restitution or replacement of motor vehicles pursuant to Code of Civil Procedure section 871.20. (Code Civ. Proc., § 871.27, subd. (a).)

Code

of Civil Procedure section 871.27, subdivision (g) states:

The restitution

payment and vehicle return procedures shall comply with all of the following conditions:

(1) A remedy in compliance with this section shall not be contingent on the execution of any release other than the Standardized SBA Release provided in Section 871.25.

(2) The defendant shall promptly process any agreed-upon motor vehicle restitution or replacement pursuant to this section and complete the restitution or replacement within 30 days from the date of receipt of a signed release from the buyer or lessee's counsel. The defendant's failure to do so shall result in a mandatory penalty of fifty dollars (\$50) per day until the settlement is completed, unless the parties stipulate otherwise. The consumer shall comply in good faith with requests from the manufacturer for reasonable documentation required to complete the requested restitution or replacement of the motor vehicle. In the event the consumer fails to comply in good faith and delays the restitution or replacement, the manufacturer shall not be subject to the daily fifty-dollar (\$50) penalty.

(3) The defendant shall provide the consumer with the funds containing their restitution proceeds at the time of the vehicle return. The defendant shall also expedite the funds for the payoff of the vehicle within one business day of the vehicle return. The defendant shall expedite the funds for attorney's fees, and if applicable, civil penalties to counsel for the consumer within one business day of the vehicle return.

III.

DISCUSSION

Plaintiff

moves for an order imposing mandatory statutory penalties against Defendant of \$50 per day under Code of Civil Procedure section 871.27, subdivision (g)(2). (Motion pp. 3-4.) Plaintiff argues Defendant was given an additional 30 days to complete the settlement and penalties are mandatory because Defendant failed to timely complete the settlement. (Motion p. 4.)

In

opposition, Defendant argues penalties under Code of Civil Procedure section 871.27, subdivision (g)(2) only apply to lawsuits filed on or after January 1, 2025, and therefore do not apply here because Plaintiff filed the complaint on November 20, 2023. (Opposition pp. 3-4.) Defendant also argues penalties are not available because the Offer of Compromise does not provide for penalties. (Opposition pp. 4-5.) Finally, Defendant argues penalties are not available because Plaintiff refused to “assist in the collection of necessary documents . . .” (Opposition p. 6.)

“Generally, statutes do not apply retroactively unless the Legislature clearly indicated otherwise.” (Phillips v. St. Mary Regional Medical Center (2002) 96 Cal.App.4th 218, 229.)

The court is not persuaded that penalties under Code of Civil Procedure section 871.27, subdivision (g)(2) are not available here because Plaintiff filed the complaint before January 1, 2025. The settlement was entered into on March 6, 2026, which was more than a year after Code of Civil Procedure section 871.27 became effective. (Stark Declaration pdf p. 7.) Defendant also does not dispute that they elected under Code of Civil Procedure section 871.29 to proceed under the chapter. (Code Civ. Proc., §§ 871.27, subd. (a), 871.20, subd. (a).)

Code of Civil Procedure section 871.27, subdivision (g)(2) states, in relevant part:

The consumer shall comply in good faith with requests from the manufacturer for reasonable documentation required to complete the requested restitution or replacement of the motor vehicle. In the event the consumer fails to comply in good faith and delays the restitution or replacement, the manufacturer shall not be subject to the daily fifty-dollar (\$50) penalty.

Defendant’s counsel submits a declaration stating Defendant needed documents including a copy of the current registration, lease buyout quote, and payment history “to verify the amount owed to pay off the loan, deliver remaining funds to Plaintiff, and transfer title.” (Stark Declaration ¶ 5.) Defendant’s counsel states the Vehicle was financed through a third-party, Ally Financial. (Stark Declaration ¶ 6.) Defendant’s counsel states Defendant has no control over Ally

Financial, but “as Plaintiff had entered into a financial agreement with Ally Financial, she would have ready access to these documents.” (Stark Declaration ¶ 6.) Plaintiff’s counsel refused to assist Defendant, and Defendant faced delays in obtaining the records from Ally Financial that Plaintiff could have avoided. (Stark Declaration ¶ 7.) Defendant was able to obtain the documents, the vehicle was surrendered on July 27, 2026, and checks were delivered on August 4, 2026. (Stark Declaration ¶ 9.)

The court finds Plaintiff failed to comply in good faith with requests from Defendant for reasonable documentation required to complete the requested restitution and that the failure to comply delayed the restitution. Thus, Defendant is not subject to penalties under Code of Civil Procedure section 871.27, subdivision (g)(2).

IV.

CONCLUSION

For the foregoing reasons, the Motion is denied.

Dated: August 20, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court